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Plaintiff, In Pro Per

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO**

Franciscus Dylan Rosario,
PLAINTIFF,

v.

CSAA Insurance Exchange;
and DOES 1 through 50, inclusive;

DEFENDANTS

Case No.: CGC-25-631802

OPPOSITION TO FEE MOTION

CCP 425.16(c)

Hearing: August 26, 2026

Time: 9:00 a.m.

Dept.: 302

Judge: Hon. Joseph M. Quinn

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**AUTHORITY TO FILE AND AUTHORITY OF THE CLERK TO AC-
CEPT**

1. Plaintiff appears in propria persona under Code of Civil Procedure section 1014 and Cal. Const. art. I, sections 3 and 16.

2. This paper is filed under Code of Civil Procedure section 1005, subdivision (b); Code of Civil Procedure section 1010; California Rules of Court, rules 3.1110 and 3.1113; and Code of Civil Procedure section 425.16, subdivision (c), as applicable to the fee motion opposed.
3. The Clerk's authority to accept this paper is under Government Code sections 68150 and 69845 and California Rules of Court, rules 2.100 through 2.111, 2.118, 2.119, 2.256, and 2.257. Rejection is limited to the enumerated technical grounds in California Rules of Court, rules 2.118 and 2.119; this paper does not present any of those grounds.
4. The Court's authority to consider the substance is under Code of Civil Procedure sections 425.16(c), 916, and 1032 to 1033.5, and California Rules of Court, rules 3.1110 and 3.1113.
5. This opposition is filed August 14, 2026, after the approximate CCP 1005(b) nine-court-day mark of August 13, 2026. Plaintiff asks the Court to consider it rather than enter an unopposed fee award.

Hearing: August 26, 2026, 9:00 a.m., Dept. 302.

I. INTRODUCTION

Defendant CSAA Insurance Exchange moves under Code of Civil Procedure section 425.16(c) for **\$32,928.27** in attorneys' fees and costs, noticed for August 26, 2026, in Department 302. (Notice / MPA / Declaration of Tyler J. O'Connell served July 17, 2026.)

Plaintiff opposes on five independent grounds:

[1] Automatic stay / jurisdiction to proceed on fees. Plaintiff is filing this date, August 14, 2026, a notice of appeal from the July 1, 2026 order, and will file a notice of automatic stay after the clerk returns the file-stamped notice. Once a notice of appeal from the July 1, 2026 anti-SLAPP order is on file, Code of Civil Procedure section 916 and *Varian Medical Systems, Inc. v. Delfino* (2005) 35 Cal.4th 180 stay trial-court proceedings on matters embraced in or affected by the appealable order. A fee award under section 425.16(c) is the monetary consequence of that order. The Court should deny the motion without prejudice, continue it, or refuse to enter any enforceable fee award while the appeal is pending.

[2] Scope overreach. Defendant previously limited its fee invoice to anti-SLAPP preparation, meet-and-confer, filing, and hearing work. Defendant then "revised" the demand to claim fees for

“litigating this case in its entirety.” (O’Connell Decl. paras. 7-9; Fee MPA.) Section 425.16(c) does not authorize an open-ended award for demurrers, motions to quash, CCP 436 strikes, CMC work, and general case administration merely because an anti-SLAPP motion was granted.

[3] Lodestar defects. The declaration asserts 165.60 hours at \$210 per hour (with some staff time at a lower rate) totaling \$32,928.27 with costs. Exhibit B’s own grand total shows **169.30** billable hours and **\$34,961.50** in fees, plus Exhibit C costs of **\$1,137.46**. Those figures do not reconcile with the noticed demand. Hours claimed for non-anti-SLAPP motions (including motion-to-quash and demurrer work) are unreasonable for a section 425.16(c) award.

[4] Cross-case / caption duplication risk. The fee invoices are captioned under Client ID work for “ROSARIO, FRANCISCUS DYLAN V. ABDELHALIM, SUBHI, ET AL.” The fee MPA proof of service misdescribes the document as a multi-defendant fee motion in Case No. CGC-25-631801. Cross-case double recovery for shared research and mixed-case billing is a classic reduction ground, especially given the companion \$37,110.46 fee demand in 801.

[5] Fee award falls with the order on appeal. Even if the Court reaches amount, any fee award under section 425.16(c) is contingent on the underlying anti-SLAPP order. Reversal or vacatur of the July 1, 2026 order eliminates the fee entitlement. Plaintiff preserves that point without waiving the stay and lodestar objections.

Plaintiff respectfully requests that the motion be denied, or that any award be reduced to fees reasonably incurred on the special motion to strike alone, with costs addressed without double recovery against the MC-010, and with enforcement stayed pending appeal.

II. LEGAL STANDARDS

A. MANDATORY FEES, DISCRETIONARY AMOUNT (LODESTAR)

A prevailing defendant on a special motion to strike is entitled to recover attorney’s fees and costs. (Code Civ. Proc., § 425.16(c); *Trapp v. Naiman* (2013) 218 Cal.App.4th 113, 122.) The amount is committed to the trial court’s discretion and is determined by the lodestar method: reasonable hours multiplied by a reasonable hourly rate. (*Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1131-1134; *Frym v. 601 Main Street LLC* (2022) 82 Cal.App.5th 613, 620-621.)

B. SCOPE: FEES ON THE MOTION, NOT THE ENTIRE CASE AS OF RIGHT

Section 425.16(c) authorizes recovery of fees and costs incurred in connection with the special motion to strike. Courts reject attempts to convert a successful anti-SLAPP into a blank check for all litigation activity in the action. Time spent on other motions, discovery fights outside the anti-SLAPP, and general case administration must be apportioned out unless Defendant proves a reasonable nexus to the special motion itself. Defendant's own earlier "reduced" invoice (limited to anti-SLAPP work) is an admission that a narrower universe exists. (O'Connell Decl. para. 7.)

C. AUTOMATIC STAY PENDING APPEAL

"Except as provided in Sections 917.1 to 917.9 ... the perfecting of an appeal stays proceedings in the trial court upon the judgment or order appealed from or upon the matters embraced therein or affected thereby." (Code Civ. Proc., § 916(a).) *Varian* holds that the stay reaches proceedings that would interfere with the appellate court's jurisdiction or affect the effectiveness of the appeal. (*Varian*, 35 Cal.4th at 189-191.) An anti-SLAPP order is immediately appealable. (Code Civ. Proc., § 425.16(i).) A fee award under subdivision (c) is the direct monetary consequence of that order.

D. COSTS AND DOUBLE RECOVERY

Recoverable costs are limited by Code of Civil Procedure sections 1032 and 1033.5 and CRC 3.1700. Defendant may not recover the same \$1,137.46 twice: once inside this fee motion and again through the July 21, 2026 MC-010.

III. ARGUMENT

ARGUMENT I

The Court should not enter an enforceable fee award while the July 1, 2026 order is on appeal (*Varian* / CCP 916).

The July 1, 2026 order granting the special motion to strike (DocID 10297081) is the predicate for this fee motion. Plaintiff is filing this date, August 14, 2026, a notice of appeal from the July 1, 2026 order, and will file a notice of automatic stay after the clerk returns the file-stamped notice.

1 Under section 916 and *Varian*, further trial-court proceedings that fix the monetary consequences
2 of the appealed order are “embraced in or affected by” the appeal.

3 Under Code of Civil Procedure section 916 and *Varian*, Plaintiff asks the Court to:

- 4 1. Deny the fee motion without prejudice to renewal after remittitur; or
- 5 2. Continue the fee hearing until the appeal is resolved; or
- 6 3. If the Court reaches amount, stay enforcement of any fee award pending appeal (and recog-
7 nize that any award falls automatically if the order is reversed).

8 Defense rhetoric that “this case is over” does not enlarge the trial court’s power to monetize an
9 order that is on appeal as of right under section 425.16(i).

10 **Relief under Argument I:** Deny or continue the motion; refuse enforceable entry of fees pending
11 appeal.

12 **ARGUMENT II**

13 **Defendant abandoned its own anti-SLAPP-limited invoice and now seeks fees for the entire**
14 **case.**

15 Defendant admits that the invoice attached to the anti-SLAPP reply “was limited only to those
16 matters directly related to preparing, meet and confer efforts regarding, drafting, filing, and appear-
17 ing in Court with respect to Defendant’s Anti-SLAPP motion,” creating a “reduced” fee amount.
18 (O’Connell Decl. para. 7; Fee MPA.) Defendant then “revised” the demand after “review and
19 analysis of controlling statutory and case authorities” to claim fees for “litigating this case in its
20 entirety.” (O’Connell Decl. paras. 8-9.)

21 That revision is the core legal error. Section 425.16(c) is not a prevailing-party fee statute for every
22 paper filed in the action. Defendant’s own contemporaneous limitation is the best evidence of a
23 reasonable anti-SLAPP fee universe. The Court should restore that limitation and strike time for:

- 24 1. Motion to quash / service practice (e.g., Exhibit B entries describing preparation of a motion
25 to quash and related declarations);
- 26 2. Demurrer and CCP 436 strike drafting and filing work billed alongside or instead of anti-
27 SLAPP work;
- 28 3. Automatic-extension / demurrer-deadline management papers;

4. Case management conference filings;
5. Oppositions to leave / amendment practice unrelated to the special motion hearing;
6. Post-order fee-motion preparation to the extent unreasonable or block-billed into “entire case” totals;
7. General email / correspondence volume that Defendant elsewhere brands as “deluge” evidence for the vexatious motion rather than as necessary anti-SLAPP work.

Defendant’s Fee MPA argues that section 425.16(c) “does not limit attorneys’ fees recover[y] to only those amounts incurred in preparing and filing the Anti-SLAPP motion” and seeks “Defendant’s attorney’s fees and costs, in full.” That reading collapses subdivision (c) into a general fee-shifting statute. The Court should reject it.

Relief under Argument II: Limit any award to reasonable anti-SLAPP-related fees only.

ARGUMENT III

Lodestar: hours, rate application, and internal mismatches require reduction.

A. Internal arithmetic and exhibit mismatches

Source	Hours	Fees	Costs	Combined
Decl. para. 9 / Notice	165.60 (with some lower staff rates)	(embedded)	(embedded)	\$32,928.27
Exhibit B grand total	169.30	\$34,961.50	n/a	n/a
Exhibit C grand total	n/a	n/a	\$1,137.46	n/a
Exhibit B + C (arithmetic)	169.30	\$34,961.50	\$1,137.46	\$36,098.96

The noticed demand (\$32,928.27) does not equal Exhibit B fees, does not equal Exhibit B plus Exhibit C, and does not equal 165.60 hours times \$210 (\$34,776.00). Defendant cannot ask the

1 Court to award a round demand that its own lodestar exhibits do not support. At minimum, the
2 Court should require a reconciled worksheet before any award.

3 **B. Rate and staffing**

4 The \$210 blended attorney rate may be within a Bay Area range for insurance defense, but De-
5 fendant admits “some time was at lower, paralegal rate for staff work” while still narrating a \$210
6 story. (O’Connell Decl. para. 9.) Exhibit B shows multiple timekeeper numbers and rates (includ-
7 ing entries at \$105, \$110, \$205, \$220, \$225). The Court should apply the actual rates shown, not a
8 blended narrative that inflates staff time.

9 **C. Unreasonable and non-compensable categories visible on Exhibit B**

10 Without waiving a line-by-line audit at hearing, Plaintiff identifies categories that should be zeroed
11 or sharply reduced for section 425.16(c) purposes:

- 12 1. **Motion to quash** time (including multi-hour preparation entries);
- 13 2. **Demurrer / CCP 436** drafting and filing time;
- 14 3. **CMC / administrative** e-filing costs and related attorney time;
- 15 4. **Block “receipt and review”** micro-entries that duplicate email management already argued
16 as vexatious-motion evidence;
- 17 5. Time spent on papers Defendant later withdrew or took off calendar (including CCP 436
18 practice where applicable);
- 19 6. Any time that is in substance work on Case No. CGC-25-631801 or the personal-injury mat-
20 ter, as suggested by the Abdelhalim caption on the invoice footer.

21 **D. Prejudice from opacity**

22 Exhibit B is heavily redacted and OCR-degraded. Defendant has the burden to prove the reason-
23 ableness of each hour. (*Ketchum*, 24 Cal.4th at 1131-1134.) Gaps, mismatches, and wrong-case
24 captions should be resolved against the moving party.

25 **Relief under Argument III:** Reduce hours and fees to a reconciled anti-SLAPP lodestar; deny the
26 demand as noticed.

27 **ARGUMENT IV**

28 **Cross-case duplication and caption errors bar an unapportioned award.**

1 The same firm is pursuing fee recoveries in both CGC-25-631802 (\$32,928.27) and CGC-25-
2 631801 (\$37,110.46 as served August 11, 2026). Shared legal research on *Park, Baral, Bonni*,
3 section 425.17(c), and related anti-SLAPP doctrines cannot be billed in full to both cases.

4 Exhibit B's client footer repeatedly identifies the matter as Rosario v. Abdelhalim. The Fee MPA
5 proof of service captions a different multi-defendant fee motion in Case No. CGC-25-631801.
6 Those defects are not clerical trivia: they are evidence that the billing system and the service
7 package confuse the two cases. The Court should require apportionment and should deny any
8 entry that cannot be tied cleanly to 802 anti-SLAPP work.

9 **Relief under Argument IV:** Apportion or deny overlapping / miscaptioned time.

10 **ARGUMENT V**

11 **Costs: no double recovery; limit to allowable anti-SLAPP costs.**

12 Exhibit C claims **\$1,137.46** in costs. That is the same Line 1 figure on Defendant's July 21, 2026
13 MC-010 in this case. Plaintiff has already addressed the MC-010 in Plaintiff's papers responding
14 to that memorandum of costs. Defendant cannot recover the same costs twice.

15 Separately, Exhibit C includes e-filing and mailing charges for demurrer / strike / CMC / with-
16 drawal papers, CourtCall for an ex parte, and other items that are not "costs of the special motion
17 to strike." Those should be stricken from any fee-motion cost award even if some subset is later
18 allowable on a properly supported costs memorandum.

19 **Relief under Argument V:** Strike duplicative and non-anti-SLAPP costs from this motion.

20 **ARGUMENT VI**

21 **Preservation: any fee award falls with the order on appeal.**

22 Plaintiff preserves the position that a section 425.16(c) fee award is derivative of the July 1, 2026
23 order. If that order is reversed, vacated, or modified on appeal such that Defendant is no longer the
24 prevailing defendant on the special motion to strike, the fee award cannot stand. This preservation
25 argument is independent of Arguments I through V and does not concede entitlement or amount.

26 **Relief under Argument VI:** If any award is entered, state expressly that it is subject to the outcome
27 of the appeal from the July 1, 2026 order.

1 **IV. CONCLUSION**

2 Plaintiff respectfully requests that the Court:

- 3 1. Deny Defendant's motion for attorneys' fees and costs in its entirety; or
4 2. Deny or continue the motion under CCP 916 / *Varian* pending appeal; or
5 3. In the alternative, reduce any award to a reconciled lodestar limited to reasonable fees in-
6 curred on the special motion to strike, exclude non-anti-SLAPP and cross-case time, and
7 strike duplicative costs; and
8 4. Preserve that any fee award falls with the July 1, 2026 order on appeal.

9 Dated: August 14, 2026

10 

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